ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	24th Commission Meeting
DATE:	27 April, 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Procurement of video conferencing and interactive board – LD	The LD appraised the Commission on the legitimacy of Sai Trading Partner to participate in the ACC's tender for the supply of video conferencing and interactive board. The bidder being implicated in one of the bribery cases investigated by the ACC and currently under trail, the LD was requested by the Secretariat Services to provide legal opinion. This was requested immediately after the bid opening stage, held on 14 April 2021, wherein the Sai Trading Partner had submitted its bid for the tender. To this, the LD submitted possible options such as i) to disqualify the bidder invoking Section 40 (1) of the ACAB 2011 and Section 2.1.4.1 (b) of the PRR 2019 or ii) to allow the bidder to participate given that the suspension order was not issued during investigation period. The meeting noted that the ACC's recommendation provided to one of the procuring agencies to debar Denzang Construction, in the past, was based on the suspension order issued by the ACC during investigation. The bid price, as per the bid opening, was apprised to the Commission wherein the Sai Trading Partner was the lowest quoted bidder amongst 11 participating bidders. Its bid price is Nu. 0.367 mn while the second lowest price is Nu. 0.519 mn. In view of the above, the Commission decided to invoke Section 40 (1) of the ACAB 2011 and disqualify Sai Trading Partner from the bidding process to avoid any wrong precedence on ethical contractual agreement. In the meantime, the Commission directed AFS to study market rate of the tender item, including online price, to ascertain price difference among the lowest quoted bids.
2	Post investigation disciplinary referrals to the agencies – LD	With regard to post investigation referrals, as far as possible, the Commission decided to be more prescriptive in recommending disciplinary actions to be enforced by the agencies during such referrals.

3	Complaints related to HR matters – LD	Given the need to ensure prompt action on the complaints related to HR, the Commission decided to qualify as *Hot Pursuit* cases hereafter.

Commissioner **Commissioner** **Chairperson**